



DEFENSE LOGISTICS AGENCY
DLA CONTRACTING SERVICES OFFICE - PHILADELPHIA
700 ROBBINS AVENUE, PHILADELPHIA, PA 19111-5092

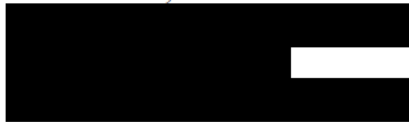
**JUSTIFICATION FOR AN EXCEPTION TO FAIR
OPPORTUNITY (FAR 16.505(b)(2))**

Upon the basis of the following justification, I hereby approve the issuance of the contractual action described below using an exception to fair opportunity, pursuant to the authority cited herein.

1. IDENTIFICATION OF AGENCY AND CONTRACTING ACTIVITY:

Requiring Activity:

DLA Information Operations (J64A)
8725 John J. Kingman Rd
Fort Belvoir, VA 22060



Contracting Activity:

DLA Contracting Service Office-Philadelphia
700 Robbins Avenue
Philadelphia, PA 19111-5092



2. NATURE AND DESCRIPTION OF THE ACTION BEING APPROVED:

Pursuant to FAR 16.505(b)(2), the action being approved is an exception to fair opportunity. This justification authorizes the use of other than full and open competition to increase the OCONUS Site Specific Support CLIN to add a Computer Operator - Basic, under the existing Task Order for Enterprise Service Delivery (ESD) III. Task Order No. SP4709-24-F-0096 was awarded on a competitive basis to CompTech with a performance period of January 3, 2025, expiring January 2, 2026. The task order includes one 12-month option period. The Task Order was placed

Controlled by: DLA DCSO – Philadelphia (DCSO-P)
CUI Category: General Procurement and Acquisition /
Source Selection Information see FAR 2.101 & 3.104
Distribution/Dissemination Controls: FED ONLY
POC:

Controlled Unclassified Information (CUI)
Source Selection Sensitive Information - See FAR 2.101 & 3.104

against CompTech's J6 Enterprise Technology Services (JETS) Indefinite-Delivery Indefinite-Quantity (IDIQ) contract, SP4709-17-D-0042. The increased scope for Aviano, Italy, support services is detailed in Section 3 below.

3. A DESCRIPTION OF THE SUPPLIES OR SERVICES REQUIRED TO MEET THE AGENCY'S NEEDS/ESTIMATED DOLLAR AMOUNT:

The Defense Logistics Agency (DLA) is seeking to convert a previously Local National position at the Aviano, Italy, site to a contractor position, due to the departure of the local national employee and the inability to backfill the role with local national personnel. As a result, the DLA requires the expertise of a contractor to provide continued support to the Aviano site and several one-off customers on the Italian mainland.

The contractor will play a critical role in providing operational support to the Aviano site, ensuring continuity of services and meeting the needs of the DLA's customers. The position will involve performing a range of tasks, including but not limited to, operating and managing computer systems, providing technical support, and interacting with customers to resolve issues and provide assistance.

The addition of this contractor position will enable the DLA to maintain its operational capabilities at the Aviano site, despite the loss of the local national employee. The contractor will work closely with the DLA's government leads to ensure a seamless transition and to provide the necessary support to meet the agency's needs.

The cost of adding a Computer Operator - Basic resource in Aviano, Italy is estimated to be [REDACTED] for the 11-month base period (CLIN 0004/Task 4 - OCONUS Site Specific Support = [REDACTED] and CLIN 0006/ODC = [REDACTED]). This increase in scope will apply to option year 1 and has an estimated value of [REDACTED]/Option Year 1 (CLIN 1004/Task 4 - OCONUS Site Specific Support = [REDACTED] and CLIN 1006/ODC = [REDACTED]).

Modification Period of Performance (POP): Anticipated Feb 3, 2025 – Jan 2, 2026, plus option period 1. The total estimated dollar value for this scope increase requirement is [REDACTED] (inclusive of option period 1).

Task Order History:

- Base Period POP: 1/3/2025 – 1/2/2026
Award Value: [REDACTED]
Revised Value following Modification 3: [REDACTED]
- Option Period 1 POP: 1/3/2026 – 1/2/2027
Award Value: [REDACTED]
Revised Value following Modification 3: [REDACTED]
- Total Award Price for the Base and All Option Periods: [REDACTED]
Total Dollar Value following issuance of this Modification: [REDACTED]

4. IDENTIFICATION OF THE EXCEPTION TO FAIR OPPORTUNITY (SEE FAR 16.505(b)(2)) AND THE SUPPORTING RATIONALE, INCLUDING A DEMONSTRATION THAT THE PROPOSED CONTRACTOR'S UNIQUE QUALIFICATIONS OR THE NATURE OF THE ACQUISITION REQUIRES USE OF THE EXCEPTION CITED:

Per FAR 16.505(b)(2)(i)(B) an exception to the fair opportunity process is justified because only one awardee is capable of providing the services required at the level of quality required in the required timeframe because the services ordered are unique and highly specialized. The current task order with CompTech supports both IT hardware and software services which is most efficiently managed by having one contractor responsible for both high priority aspects, as it better addresses the need for consistency in managing the functional areas. Introducing another vendor would require additional efforts, present schedule, and performance risks, and jeopardize the Government's ability to deliver immediate enhanced site specific support to Aviano, Italy.

DLA's need for continued operational support to the Aviano site is an urgent requirement, and award to anyone other than CompTech at this time would result in unacceptable delays. CompTech and its subcontractor partners have already demonstrated the ability to provide operational support to the European region, and have the necessary resources and expertise to perform the additional work required by this modification. Awarding this work to CompTech will ensure a seamless transition and minimize disruptions to the site's operations.

5. A DETERMINATION BY THE CONTRACTING OFFICER THAT THE ANTICIPATED COST TO THE GOVERNMENT WILL BE FAIR AND REASONABLE:

As the Contracting Officer, I hereby determine that the anticipated cost to the Government will be fair and reasonable. The proposal will be analyzed in accordance with FAR 15.404-1 procedures. It is anticipated that the Government will use various price analysis techniques including, but not limited to (1) Comparison with competitive price lists in accordance with FAR 15.404-1(b)(2)(iv); (2) Comparison with Independent Government Cost Estimate (FAR 15.404-1(b)(2)(v)); and/or (3) Comparison of proposed prices obtained through market research for the same or similar items in order to obtain a fair and reasonable price in accordance with FAR 15.404-1(b)(2)(vi).

6. ANY OTHER FACTS SUPPORTING THE JUSTIFICATION:

N/A.

7. A STATEMENT OF THE ACTIONS, IF ANY, THE AGENCY MAY TAKE TO REMOVE OR OVERCOME ANY BARRIERS THAT LED TO THE EXCEPTION TO FAIR OPPORTUNITY BEFORE ANY SUBSEQUENT ACQUISITION FOR THE SUPPLIES OR SERVICES IS MADE:

The Enterprise Service Delivery III task order was solicited as a competitive acquisition under the JETS contract vehicle. The circumstances leading to the need for this modification were unforeseen prior to solicitation and award. This sole source action is required before a new ESD

8. CERTIFICATIONS.

DATE

DATE






DATE
